53. Same; persons appointed to execute process.—Every person appointed to execute process under section 50 of this title shall be entitled to a fee of $5 for each party he may arrest and take before any commissioner, with such other fees, as may be deemed reasonable by the commissioner for any additional services necessarily performed by him, such as attending at the examination, keeping the prisoner in custody, and providing him with food and lodging during his detention, and until the final determination of the commissioner; such fees to be made up in conformity with the fees usually charged by the officers of the courts of justice within the proper district or county, as near as may be practicable, and paid out of the Treasury of the United States on the certificate of the judge of the district within which the arrest is made, and to be recoverable from the defendant as part of the judgment in case of conviction. (R. S. § 1987.)

54. Speedy trial.—Whenever the President has reason to believe that offenses have been, or are likely to be committed against the provisions of chapter 3 of Title 18, or of sections 240, 428, 443 to 445 of said Title 18, or of section 51 of this title, within any judicial district, it shall be lawful for him, in his discretion, to direct the judge, marshal, and district attorney of such district to attend at such place within the district, and for such time as he may designate, for the purpose of the more speedy arrest and trial of persons so charged, and it shall be the duty of every judge or other officer, when any such requisition is received by him to attend at the place and for the time therein designated. (R. S. § 1988.)

55. Aid of military and naval forces.—It shall be lawful for the President of the United States, or such person as he may empower for that purpose, to employ such part of the land or naval forces of the United States, or of the militia, as may be necessary to aid in the execution of judicial process issued under any of the preceding sections, or as shall be necessary to prevent the violation and enforce the due execution of the provisions of this title. (R. S. § 1989.)

56. Peonage abolished.—The holding of any person to service or labor under the system known as peonage is abolished and forever prohibited in any Territory or State of the United States; and all acts, laws, resolutions, orders, regulations, or usages of any Territory or State, which have heretofore established, maintained, or enforced, or by virtue of which any attempt shall hereafter be made to establish, maintain, or enforce, directly or indirectly, the voluntary or involuntary service or labor of any persons as peons; in liquidation of any debt or obligation, or otherwise, are declared null and void. (R. S. § 1990.)

Chapter 4.—FREEDMEN.

Sec.
61. Laws continued in force.
62. Laws enforced by Secretary of War.
63. Claims for pay or bounty; payment.
64. Retained bounty fund; application for payments.
65. Who deemed wife and children of colored soldiers.

Section 61. Laws continued in force.—All laws and parts of laws pertaining to the collection and payment of bounty, prize money, and other legitimate claims of colored soldiers, sailors, and marines, or their heirs, shall remain in force until otherwise ordered by Congress. (R. S. § 2032.)

62. Laws enforced by Secretary of War.—The Secretary of War is authorized to carry into effect all laws and parts of laws referred to in the preceding section, and to this end he may employ such clerical force as he deems necessary. (R. S. § 2033.)

63. Claims for pay or bounty; payment.—All sums due upon certificates issued, or which may be issued in settlement of claims for pay, bounty, prize money, or other moneys due to colored soldiers, sailors, or marines, or their legal representatives, shall be paid in the same manner as similar claims are paid to white soldiers, sailors, and marines, but no such certificate shall be issued until it shall have been ascertained that the application is made by the original claimant, or, if he be dead, by his true living legal representative, nor until the identity of such claimant or representative as the case may be, shall have been duly established. If an agent or attorney be employed, the allowance for his services shall not in any case exceed that contemplated in the scale of fees and allowances fixed by joint resolution July 26, 1866, Numbered 86, section 2, Fourteenth Statutes, page 368, and no power of attorney, transfer or assignment of the amount of such claims, or any part thereof, shall in any case be recognized. (Mar. 3, 1879, c. 182, § 2, 20 Stat. 402; Feb. 1, 1888, c. 4, § 1, 25 Stat. 9.)

64. Retained bounty fund; application for payments.—The unexpended balance of the retained fund in the custody of the Freedmen's Bureau prior to July 1, 1902, is covered into the Treasury as "Miscellaneous receipts." Upon application by parties entitled to any portion of the money so covered in, the Secretary of the Treasury is authorized and directed to pay the amount found due in the same manner and from the same appropriation as claims for bounty to volunteer soldiers are now paid. (July 1, 1902, c. 1351, 32 Stat. 556.)

65. Who deemed wife and children of colored soldiers.—In determining who is the wife or child of any colored soldier, within the meaning of this chapter, evidence that the soldier and the woman claimed to be his wife cohabited or associated as husband and wife, and so continued to cohabit or associate at the time of enlistment, or evidence that a form of marriage, whether such marriage was authorized or recognized by law or not, was entered into by them, and that the parties thereafter lived together as husband and wife, and so continued to live together at the time of the enlistment, shall be deemed sufficient proof of marriage; and the children born of any such marriage shall be taken to be the children embraced within the provisions of this chapter, whether such marriage was or was not dissolved at the time of the enlistment. (R. S. § 2037.)

Chapter 5.—ALIEN OWNERSHIP OF LAND.

Sec.
71. Acquisition or ownership of land in Territories by aliens.
72. Same; lands previously acquired.
73. Same; acquisition by inheritance or in collection of debts.
74. Same; conveyance by aliens before escheat proceedings.
75. Same; escheat proceedings.
76. Same; condemnation and sale of lands.
77. Same; public lands.
78. Same; real estate in District of Columbia.
79. Same; real estate in District of Columbia; treaties.
80. Same; real estate in District of Columbia; alien owned corporations.
81. Same; real estate in District of Columbia; forfeiture of property.
82. Same; real estate in District of Columbia; foreign legations.
83. Public lands in Hawaii; right to acquire in general.
84. Same; conveyance or other transfer to alien.
85. Same; preference right to purchase land to persons declaring intention to become citizens.
86. Same; sale of agricultural land to persons declaring intention to become citizens.

Section 71. Acquisition or ownership of land in Territories by aliens.—No alien or person who is not a citizen of the United States, or who has not declared his intention to become a citizen of the United States in the manner provided by law shall acquire title to or own any land in any of the Territories of the United States except as hereinafter provided. The prohibition of this section shall not apply to cases in which the right to hold or dispose of lands in the United States is secured by existing treaties to citizens or subjects of foreign countries, which rights, so far as they may exist by force of any such treaty, shall continue to exist so long as such treaties are in force, and no longer. (Mar. 2, 1887, c. 363, § 1, 29 Stat. 618.)